Huntington Sanitary Board
Permit No. 0986002-M
Permit Fact Sheet
Veterans Administration Medical Center

General Information. **Permit 0986002-M** Domestic and Non-Domestic wastewater associated with hospital activities less than 1000 occupied beds, SIC 8062 Discharge/ Sampling Location: Existing Sanitary Manhole No. "18" in the 8-inch sewer line that runs downhill south to north in the main entrance road and is located approximately 25-30 ° northeast of the parking garage. Effluent is subject to local limits.	40 CFR 403; 261.24; 47 WVCSR; Section 933 of the Codified Ordinances of the City of Huntington;
Summary of permit conditions. Veterans Administration Medical Center is a non-categorical significant industrial user based on flows greater than 25,000 gallons per day. Their discharge flows into the Spring Valley P.S.D.'s collection system that discharges to the Board's collection system on Carson Street in Westmoreland. Local limits and RCRA restrictions apply.	40 CFR 403; 261.24; 47 WVCSR; Section 933 of the Codified Ordinances of the City of Huntington;
Permit Conditions Effluent conditions: This is not a categorical user with less than 1000 occupied beds, local limits and RCRA dictate. The Huntington Sanitary Board has specific local limits developed for the maximum allowable headwork's loading and RCRA dictates the type and amounts of hazardous wastes discharged to a POTW collection system. Zinc allocation for this facility has been raised based on actual maximum reported results.	40 CFR 403; 40 CFR Subpart C, 261.24; Section 933 of the Codified Ordinances of the City of Huntington; Appendix A of current permit.
Administrative Requirements Any Best Management Practices plans (BMPs) outlined in Section III of this permit must be current and guidance for completing these plans can be found at EPA's web site: www.EPA.gov; Guidance Manual for Developing Best Management Practices (BMPS). Contact for this permit is Carrie Denvir, 681-520-8090 or cdenvir@huntingtonsb.com	www.epa.gov/npdes/pubs/owm0274.pdf

HUNTINGTON SANITARY BOARD

INDUSTRIAL WASTE DISCHARGE PERMIT

Permit No. 986002-M

In accordance with all terms and conditions of the City of Huntington Sewer Ordinance adopted on March 11, 1997, and amended on February 11, 2019, and any applicable provisions of the State and Federal Pretreatment regulations; permission is hereby granted to:

Veteran's Administration Medical Center
1540 Spring Valley Drive
Huntington, WV 25704

to discharge from its hospital facilities located at :

1540 Spring Valley Drive
Huntington WV 25704

to the Huntington Sanitary Board's 12 in diameter sewer in Carson Street via the Spring Valley P.S.D. interceptor sewer.

This permit is granted in accordance with the permit application filed on June 18, 2024 and in conformance with plans, an on-site inspection, specifications and other data submitted to the Huntington Sanitary Board in support of the aforementioned application, all of which are filed with and considered part of this permit, together with the following conditions and requirements contained herein.

Effective the 30th day of November, 2024

To expire the 30th day of November, 2027

Chairman
Huntington Sanitary Board

10/4/2024
Date

SECTION I: WASTEWATER DISCHARGE LIMITATIONS

The permittee is a Non Categorical Significant Industrial User authorized to discharge effluent associated with hospital activities. The permittee's discharge line connects to Spring Valley P.S.D.'s collection system that eventually discharges into the Boards collection system on Carson Street in Westmoreland. The permittee may discharge their wastewater into the Board's system provided such discharge is in compliance with the terms and conditions of this permit.

1. The permittee is authorized to discharge the following type(s) of non-domestic or industrial wastewater provided such discharge is in compliance with the terms, conditions, and specifications of this permit:

   A. Hospital laundry wastewater, non-contact cooling water, boiler blow down, non-hazardous laboratory wastewater and sanitary sewage typical of hospital facilities.
   B. Deionized water for lab and equipment use.

   Pretreatment for wastewater from the dental office includes a Mercury amalgam trap and a plaster trap. These shall not be bypassed. Pretreatment for wastewater from food preparation areas includes grease interceptors. These shall not be bypassed. Pretreatment for wastewater from imaging includes a Barium trap. This shall not be bypassed.

2. The discharge of any type of industrial wastewater other than those specifically authorized by this permit, including but not limited to, residues or sludges from any sediment/ recirculation pits, residues or sludges from any oil skimming/ separation facilities, or any toxic organic solvents, except as defined by the priority pollutant list of the Clean Water Act and currently limited as "TTO" to a total concentration of 2.13 mg/L, is expressly prohibited without prior written approval from the Board.

3. The discharge of any type of waste material that would normally be classified as a hazardous waste under 40 CFR Part 261, because it exhibits one or more of the hazardous waste characteristics of 40 CFR Sections 261.21-261.24 or is listed in 40 CFR Sections 261.31-261.33, is strictly prohibited unless prior written authorization has been issued by the Board.

4. The permittee shall comply with the following wastewater discharge limitations:

   A. No user shall contribute or cause to be contributed, directly or indirectly, any pollutants that will pass through the POTW or interfere with the operations or

performance of the POTW. These general prohibitions apply to all such users of a POTW whether or not the user is subject to Federal categorical pretreatment standards or any other Federal, State or local pretreatment standards or requirements. A user may not contribute the following substances to the POTW:

(a) Any liquids, solids or gases which by reason of their nature or quantity are, or may be, sufficient either alone or by interaction with other substances to cause a fire or an explosion or be injurious in any other way to the POTW or to the operation of the POTW. At no time shall two successive readings on an explosion hazard meter, at the point of discharge into the system, or at any point in the system, be more than five percent (5%), nor any single reading over ten (10%) of the Lower Explosive Limit (LEL) of the meter. Restricted materials include, but are not limited to, gasoline, kerosene, naphtha, benzene, toluene, xylene, ethers, alcohols, ketones, aldehydes, peroxides, chlorates, perchlorates, bromates, carbides, hydrides and sulfides and any other substances which the Board, the State or the EPA has notified the user is a fire hazard to the system.

(b) Any solid or viscous substances which may cause obstruction to the flow in a sewer, or cause mechanical action that will destroy the sewer structures or cause other interference with the operation of the POTW such as, but not limited to: grease, garbage with particles greater than one-half inch in any dimension, animal guts or tissues, paunch manure, bones, hair, hides or fleshings, entrails, whole blood, feathers, ashes, cinders, sand, spent lime, stone or marble dust, metal, grains, spent hops, wastepaper, wood, plastics, gas, tar, asphalt residues, residues from the refining or processing of fuel or lubricating oil, mud or glass grinding or polishing wastes.

(c) Any wastewater containing toxic pollutants in sufficient quantity, either Singly or by interaction with other pollutants, to injure or interfere with any wastewater treatment process, which constitutes a hazard to humans or animals, create a toxic effect in the receiving waters of the POTW, or exceed the limitation set forth in a categorical pretreatment standard. A toxic pollutant shall include, but not be limited to any pollutant identified pursuant to Section 307 (a) of the Clean Water Act.

(d) Any noxious or malodorous liquids, gases or solids which either singly or by interaction with other wastes are, in the opinion of the Board, sufficient to create a public nuisance or hazard to life or are sufficient to prevent entry into the sewers for their maintenance and repair.

(e) Any substance which may cause the POTW's effluent or any other product of the POTW such as residues, sludges of scums, to be unsuitable for reclamations and reuse or to interfere with the reclamations process where the POTW is pursuing a reuse and reclamation program. In no case shall a substance discharged to the POTW cause the POTW to be in noncompliance with sludge use or disposal criteria, guidelines or regulations developed under Section 405 of the Clean Water Act; any criteria, guidelines or regulations affecting sludge use or disposal developed pursuant to the Solid Waste Disposal Act, the Clean Air Act, the Toxic Substances Control Act or State criteria applicable to the sludge management method being used.

(f) Any substance which causes the POTW to violate its NPDES and/or State Disposal System Permit or the receiving water quality standards.

(g) Any wastewater containing dyes, paints, pigments, ink or other coloring agents, which are not removed by the treatment process and are in sufficient quantity to cause or materially contribute to any distinctively visible color in the receiving waters.

(h) Any wastewater having a temperature which inhibits biological activity in the POTW treatment plant resulting in interference, but in no case wastewater that causes the temperature at the introduction into the POTW treatment plant to exceed 40 degrees Centigrade (104 degrees Fahrenheit).

(i) Any pollutants, including oxygen-demanding pollutants, BOD, etc., released at a flow and/or pollutant concentration or loading which a user knows or has reason to suspect will cause interference to the POTW. Where the Board deems it advisable, it may require any person discharging industrial wastes to utilize flow equalization or restricted discharge rates to prevent potential slug loading problems, such as in the case of batch discharges.

(j) Any wastewater containing any radioactive wastes or isotopes of such half-life or concentration as may exceed limits established by the Board in compliance with applicable State or Federal regulation.

(k) Any wastewater having a pH lower than 5.0 or higher than 10.0, or having any other corrosive property capable of causing damage or hazards to structures, equipment or personnel of the POTW. Where the Sanitary Board deems it advisable, it may require any person discharging industrial wastes to install and maintain, in an approved manner, a suitable device to continuously measure and record the pH of the wastes so discharged.

(l) Petroleum oil, non-biogradable cutting oil, or products of mineral oil origin in amounts that will cause interference or pass through.

(m) Storm water, surface water, ground water, artesian well water, roof runoff, subsurface drainage, condensate, deionized water, non-contact cooling water, and unpolluted wastewater, unless specifically authorized by the Board.

(n) Sludges, screenings, or other residues from the pretreatment of industrial wastes, including but not limited to any solid, semi-solid, residue or precipitate separated from or created by a municipal, commercial or industrial waste treatment plant, water supply treatment plant, or air pollution control facility, or any other such waste having similar origin; unless specifically authorized by the Board.

(o) Wastewater causing, alone or in conjunction with other sources, the treatment plant's effluent to fail a toxicity test.

(p) Detergents, surface-active agents, or other substances which may cause excessive foaming in the POTW.

When the Sanitary Board determines that a user(s) is contributing to the POTW any of the above enumerated substances in such amounts so as to interfere with the operation of the POTW, the Board shall:

(1) Advise the user(s) of the impact of the contribution on the POTW; and,

(2) Develop effluent limitation(s) for such user to correct the interference with the POTW.

B. For the purpose of preventing dilution as a means of compliance, the permittee's average daily water consumption as calculated from West Virginia-American Water Company's meter readings shall not exceed 150,000 gallons per day (gpd). The average daily water consumption shall be calculated by dividing the total water consumption during any monthly billing period by the actual number of operating days during that billing period.

C. The quality of the wastewater discharge as monitored at the sampling point as defined in this permit shall comply at all times with the limits specified in Table I.

D. The discharge of storm water runoff to sanitary sewers is hereby prohibited except as provided for under Article 933.07 of the Codified Ordinances of Huntington West Virginia.

TABLE I
SPECIFIC WASTEWATER DISCHARGE LIMITATIONS
VETERAN'S ADMINISTRATION MEDICAL CENTER

Parameter	Daily Concentration[1]	Limit Type
Total Suspended Solids	Monitor Only	
Total Dissolved Solids	Monitor Only	
Ammonia-Nitrogen	Monitor Only	
BOD-5day	Monitor Only	
Mercury, Total	0.0006 Pounds/Day and 0.0005 mg/L	Local
Zinc, Total[2]	0.8 Pounds/Day	Local
Total Gross Alpha	Monitor Only	
Total Gross Beta	Monitor Only	
pH	5.0-10.0 SU	
Flash Point	>140 F	
Phenolics, Total[3]	Monitor Only	
Oil and Grease, Total	160 mg/L	Local
Total Toxic Organics[4]	2.13 mg/L	

Parameter	Daily Concentration[1]	Limit Type
(VOCs[5])		
(SVOCs)		
Flow	150,000 Gallons	

Monitoring Point 001 - Existing Sanitary Manhole # 18 in the 8 in sewer line that runs downhill south to north in the main entrance road and is located approx. 25-30 degrees northeast of the parking garage.

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1 Proportionate composite samples shall be collected on a weekday (Monday through Friday) during the approximate time period of 8:00AM to 4:00PM on a non-rainfall day.

2 See Appendix A

3 For the purposes of this permit "Phenolics" shall be defined as the sum of the concentrations of those eleven (11) compounds referenced by EPA Method 420.4 as defined in 40 CFR Part 136 Appendix A.

4 TTO is the summation of all organic priority pollutants, as listed by the EPA pursuant to Section 307 (a) (1) of the Clean Water Act of 1977, detected in the discharge at quantifiable values greater than 0.01 mg/l.

5 For Volatile Organic Compounds, the EPA's VOA Compositing Procedures (Draft 9/1/94) may be used to composite a minimum number of grabs for VOA (EPA Method 624) analysis.

SECTION II: SELF_MONITORING REQUIREMENTS

1. The permittee at its own expense shall effectively monitor the quantity and quality of the wastewater discharge. The sampling location, monitoring parameters, sample frequency and sample type shall be in accordance with the monitoring schedule specified in Table II.

2. Samples and measurements taken as required herein shall be representative of the normal volume and nature of the wastewater discharged by the permittee. Unless specified otherwise in this permit, all wastewater samples shall be collected at or as near as possible to the point of discharge during dry weather periods.

3. All sampling and analyses shall be performed in accordance with procedures established by the U.S. Environmental Protection Agency pursuant to Section 304(g) of the Clean Water Act and contained in 40 CFR Part 136, revised July 1, 1994, as amended. All analytical procedures not expressly listed in 40 CFR 136 shall be subject to prior approval by the Board.

4. All self-monitoring reports shall be due no later than the reporting date specified in Table III; Final Compliance Schedule of this permit.

5. The Total Toxic Organic (TTO) solvent management plan and waste minimization plan updates shall be submitted by December 31st of each year date specified in Table III; Final Compliance Schedule of this permit.

6. A Slug Discharge Plan update shall be submitted by December 31st biennially (every two years) with a full plan submittal due with each new permit application.

7. Inspection and calibration records for any and all flow and/or pH metering equipment required by this permit shall be retained on site for a minimum of three years and shall be available for inspection.

TABLE II
SPECIFIC SELF-MONITORING REQUIREMENTS
VETERAN'S ADMINISTRATION MEDICAL CENTER

Monitoring Point 001 - Existing Sanitary Manhole # 18 in the 8 in sewer line that runs downhill south to north in the main entrance road and is located approx. 25-30 degrees northeast of the parking garage.

Parameter	Daily Concentration	Sample Frequency	Sample Type[1]
Total Suspended Solids	Monitor Only	Semi-annual	8-Hr Composite
Total Dissolved Solids	Monitor Only	Semi-annual	8-Hr Composite
Ammonia-Nitrogen	Monitor Only	Semi-annual	8-Hr Composite
BOD-5day	Monitor Only	Semi-annual	8-Hr Composite
Mercury, Total[7]	0.0006 #'s/Day and 0.0005 mg/L	Semi-annual	Grab[7]
Zinc, Total[3]	0.8 Pounds/Day	Semi-annual	8-Hr Composite
Total Gross Alpha	Monitor Only	Annual	8-Hr Composite
Total Gross Beta	Monitor Only	Annual	8-Hr Composite
pH	5.0-10.0 SU	Semi-annual	Grab[2]
Flash Point	>140 F	Semi-annual	Grab[2]
Phenolics, Total[4]	Monitor Only	Semi-annual	Grab[2]
Oil and Grease, Total	160 mg/L	Semi-annual	Grab[2]
Total Toxic Organics[5]	2.13 mg/L	Semi-annual	
(VOCs[6])			Grab
(SVOCs)			8-Hr Composite

1 Proportionate composite samples shall be collected on a weekday (Monday through Friday) during the approximate time of 8:00AM to 4:00PM on a non-rainfall day.

2 Minimum of four (4) grab samples collected at equal intervals over the 8-hour composite sampling period and analyzed and reported separately.

3 See Appendix A

4 For the purposes of this permit "Phenolics" shall be defined as the sum of the concentrations of those eleven (11) compounds referenced by EPA Method 420.4 as defined in 40 CFR Part 136 Appendix A.

5 TTO is the summation of all organic priority pollutants, as listed by the EPA pursuant to Section 307 (a) (1) of the Clean Water Act of 1977, detected in the discharge at quantifiable values greater than 0.01 mg/l.

6 For Volatile Organic Compounds, the EPA's VOA Compositing Procedures (Draft 9/1/94) may be used to composite a minimum number of grabs for VOA (EPA Method 624) analysis.

7 USEPA Method No. 245.7 (with method detection limit of .0018ug/L) or Method No. 1631 (with method detection limit of .0002ug/L) must be used for the analysis of mercury as defined in 40 CFR Part 136.

SECTION III: SPECIAL CONDITIONS/COMPLIANCE SCHEDULES

1. The permittee at its own expense shall make any in-plant process modifications and/or install and operate any pretreatment facilities necessary to comply with the discharge limitations specified in Section I of this permit.

2. In lieu of installing and maintaining flow metering equipment for monitoring the wastewater discharge flow from the facility, the facility's water consumption as metered by West Virginia-American Water, shall be considered a reasonable approximation of the actual wastewater flow. The permittee shall immediately notify the Board of any changes in their raw water supply source(s), e.g., inoperable meter, new meter installations, installation or use of any private well or surface water source, etc.

3. Any permittee subject to Total Toxic Organic (TTO) discharge limitation in Section I of this permit shall develop and submit to the Board, within ninety (90) days of the effective date of this permit (unless previously submitted or otherwise specified in the compliance schedule), a **TTO Solvent Management Plan**. The Solvent Management Plan (S.M.P.) shall include, at a minimum, the following information:

   A. A list of all Toxic Organic compounds, as listed in the following; 40 CFR 413.02 (i) revised July 1, 1994, 40 CFR 261, any organic compound with a flash point of 140 degrees F or less, or any other organic compound or substance which exceeds the Reporting Threshold as per **RCRA** (40 CFR 261), **CERCLA** (40 CFR 302), or **SARA** (40 CFR 355 OR 40 CFR 372), which are either stored, used, or generated on the premises. Laboratory chemicals purchased and used in individual quantities of one (1) gallon or less are exempt.

   B. A description of the step in the production process where these compounds are used and the location where stored, including a copy of all information required to be reported via the Tier Two, Emergency and Hazardous Chemical Inventory list, required for compliance with "SARA Title III" regulations.

   C. A description of the method of disposal used for each, including contract services (e. g., reclamation, name of contract hauler, etc.).

   D. A description of the in-house procedures used to insure that these compounds do not routinely spill or leak into the sewer system, including, but not limited to, containment facilities required for compliance with subtitles C and D of the "Resource Conservation and Recovery Act".

   E. A copy of the Material Safety Data Sheets for each product used, stored, or generated which has been classed by the State or Federal Government as "Hazardous", whether by definition or by characteristic including all products subject to the reporting requirements of **SARA** as referenced in 2.A above, and all products containing organic compounds listed as "priority pollutants" under the Clean Water Act.

This information must be updated on an annual basis. At any time a new substance as defined in "A" above is purchased, used, or generated by the permittee in quantities

exceeding the regulatory reporting threshold, written notification shall be submitted to the Board to amend the current TTO Solvent Management Plan on file. **The current plan, as amended, will be part of this permit and made enforceable by Huntington's Pretreatment Enforcement Response Plan. A TTO Certification Statement shall be submitted semi-annually as per Table III.**

4. Any permittee subject to a **Slug Discharge Control Plan** shall develop and submit a plan to the Board, biennially (unless specified otherwise in the compliance schedule), as per 40 CFR 403.8 (f) (2) (v). A "slug discharge" is defined as "any discharge of a non-customary batch discharge." Any discharge which would violate the prohibitions in 40 CFR 403.5 (b) is also considered a slug discharge. This plan will become part of this permit, as submitted and amended, and is an enforceable document under the "Enforcement Response Plan" as submitted and amended.

The Slug Discharge Control Plan shall include, at a minimum, the following information:

A. Description of discharge practices, including non-routine batch discharges;
B. Description of stored chemicals:
C. Procedures for immediately notifying the POTW of Slug Discharges, including any Discharge that would violate a prohibition under 403.5(b) with procedures for follow-up written notification within five days;
D. If necessary, procedures to prevent adverse impact from accidental spills, including inspection and maintenance of storage areas, handling and transfer of materials, loading and unloading operations, control of plant site run-off, worker training, building of containment structures or equipment, measures for containing toxic organic pollutants (including solvents), and/or measures and equipment for emergency response.

Additionally, 40 CFR 403.2 (f) requires all Industrial Users to notify the POTW immediately of any discharge that could cause problems to the POTW, including any slug loadings, as defined in 40 CFR 403.5 (b). **The current plan, as amended, will be part of this permit and made enforceable by Huntington's Pretreatment Enforcement Response Plan. The Slug Discharge Control Plan Update shall be updated biennially (every two years) as per Table III.**

5. The permittee should develop and implement a waste minimization plan to reduce the amount of pollutants discharged to the Boards wastewater system. **The current plan, as amended, will be part of this permit and made enforceable by Huntington's Pretreatment Enforcement Response Plan. Report on those efforts will be required on an annual basis as per Table III.**

TABLE III
FINAL COMPLIANCE SCHEDULE

VETERAN'S ADMINISTRATION MEDICAL CENTER

TASK OR ACTIVITY	COMPLETION DATE
Submit semi-annual self-monitoring reports	No later than June 30th and December 31st annually
Submit Semi-Annual TTO Discharge Monitoring.	No later than June 30 and December 31st each year
Submit TTO Certification Statement Management Plan is submitted in lieu of sampling	No later than June 30 and if a December 31st each year
Submit Total Toxic Organic Solvent Management Plan update	No later than December 31st annually
Submit an updated Slug Control Discharge Plan	No later than December 31st biennially
Submit Waste Minimization Plan or update	No later than December 31st annually
Submit request for permit renewal.	By May 30, 2027

SECTION IV: REPORTING REQUIREMENTS

1. The permittee shall immediately notify the Board upon any accidental spill or slug discharge to the sanitary sewer as outlined in Item 9 of Section V of this permit and Articles 933.18-19 and 933.41 (f) of the City of Huntington's Sewer Use Ordinance.

2. The permittee shall notify the Board of any upset or breakdown experienced by the permittee's process facilities or pretreatment facilities that may result in a temporary state of noncompliance with discharge limitations contained in this permit. Any such upset shall be reported to the Board immediately upon first awareness of the upset as outlined in Item 9 of Section V of this permit.

3. The permittee is required to give prior written notification to the Board before making any changes or modifications that will result in the introduction of any new wastewater or pollutants or any substantial change in the volume or characteristics of the waste discharge authorized by this permit. Formal written notification shall be submitted to the Board at least sixty (60) days prior to the anticipated change so that the permit may be modified accordingly.

4. The permittee shall submit to the Board a semi-annual compliance report indicating the results of the discharge monitoring and analyses specified in Section II of the permit. Each semi-annual compliance report shall include the following data:

   A. Total water consumption (in gallons) for each billing period or month as metered by the WVAWC. Also include average daily water consumption for each month calculated by taking the total flow for one month and dividing by thirty (30) days.

   B. Analytical results for each sample required,

   C. The date, exact place, method, and time of sampling and the names of the person or persons taking the samples, the dates each analysis were performed, who performed the analysis, the analytical techniques/method used.

   D. An updated listing of all toxic organic compounds or solvents used or stored on the premises and Material Safety Data sheets for any new materials.

E. **Certification statement of compliance** or noncompliance by the permittee, which should read as follows:

To whom it may concern:

I certify under penalty of law that this document and all attachments were prepared under my direction or supervision in accordance with a system designed to assure that qualified personnel properly gather and evaluate the information submitted. Based on my inquiry of the person or persons who manage the system, or those persons directly responsible for gathering the information, the information submitted is, to the best of my knowledge and belief, true, accurate, and complete. I am aware that there are significant penalties for submitting false information, including the possibility of fine and imprisonment for knowing violations.

Also any applicable **TTO Certification Statement**, which should read as follows:

Based upon my inquiry of the person or persons directly responsible for managing compliance with the pretreatment standard for the Total Toxic Organics (TTO), I certify that, to the best of my knowledge and belief, no dumping of concentrated toxic organics into the wastewaters has occurred since filing the last discharge monitoring report. I further certify that this facility is implementing the toxic organic management plan submitted to the control authority.

F. In the event of noncompliance, the reason(s) for not complying, the corrective actions being taken and the anticipated schedule for achieving compliance.

G. The compliance report shall be properly completed, signed by an authorized representative of the permittee, and submitted to the Board on or before the times specified in the compliance schedule, unless an alternate submission schedule has been approved in writing by the Board.

5. All reports shall be submitted directly to the Board's Office at the following address:

Carrie Denvir
Pretreatment Coordinator
Huntington Sanitary Board
P.O. Box 7098
Huntington, WV 25775-7098

SECTION V: GENERAL CONDITIONS

1. All wastes discharged under the terms of this permit shall be amenable to treatment by the Board's existing treatment facilities.

2. The Board shall not be responsible for the removal of non-biodegradable constituents contributed by the permittee, and their subsequent discharge to the Ohio River. If such discharge is in violation of present or future requirements of the West Virginia Department of Environmental Protection or the U.S. Environmental Protection Agency, the permittee shall be responsible for removal of said constituents prior to discharge to the Board's sewer system.

3. All discharges authorized herein shall be consistent with the terms and conditions of this permit. The discharge of any pollutant more frequently than, or at a level in excess of, that identified and authorized by this permit shall constitute a violation of the terms and conditions of this permit. Such a violation may result in revocation of this permit and suspension of sewer service as provided for in Article 933.29 of the City of Huntington's Sewer Use Ordinance.

4. Any changes in the activities of the permittee's operations or anticipated expansion and/or modification of the permittee's facilities, that will alter the volume and/or characteristics of the waste discharge authorized by this permit must be reported to the Board. Modifications to this permit may then be made to reflect any necessary changes in permit conditions, including any necessary effluent limitations for any pollutants not identified or limited herein.

5. In the event that either the U.S. Environmental Protection Agency or the West Virginia Department of Environmental Protection shall establish effluent standards or pretreatment requirements including any schedule of compliance for a pollutant which is present in the permittee's discharge, and such standard or requirement is more stringent than any limitation imposed by this permit; this permit shall be revised or modified in accordance with such standard or requirement and the permittee shall be notified.

6. Future limitations required of the Board, by the West Virginia Department of Environmental Protection or the U.S. Environmental Protection Agency shall be cause for changing the terms and/or conditions of this permit.

7. Industrial waste surcharges for excess BOD, suspended solids, or chlorine demand shall be in accordance with Article 933.29 of the City of Huntington's Sewer Use Ordinance. After the end of each fiscal year, the Board will calculate the surcharge rates for the preceding year based on actual costs for the preceding year. The surcharge billing for the preceding year will then be adjusted by either a credit or an additional charge, as necessary. The adjusted surcharge rates will then be used for surcharge billing during the current fiscal year.

8. The permittee shall allow the Board and/or their authorized representatives, upon the presentation of credentials:
   A. To enter upon the permittee's premises where the discharge source is located or where any records are required to be kept under the terms and conditions of this permit;
   B. To have access to and copy at reasonable times any records required to be kept under the term and conditions of this permit;
   C. To inspect at reasonable times any monitoring equipment or monitoring method required in this permit; or,
   D. To sample at reasonable times any discharge of pollutants.

9. If for any reason the permittee does not comply with or will be unable to comply with any effluent limitation specified in this permit, or should any unusual, accidental spill, or extraordinary discharge of wastes occur from the facilities herein permitted, the permittee shall immediately notify the Board and the Huntington Wastewater Treatment Plant by telephone at 681-520-8090 and 304-360-9118 and provide the Board with the following information in writing within **five (5)** days of such notification:
   A. A description of the non-complying discharge including its location, nature, cause, duration, quantity of flow, and impact upon the sewage treatment system.
   B. Cause of noncompliance.
   C. Anticipated time the condition of noncompliance is expected to continue or if such condition has been corrected, the duration of the period of noncompliance.
   D. Steps taken by the permittee to prevent recurrence of the condition of noncompliance.

10. Individual wastewater discharge permits or coverage under general permits may be transferred to a new owner or operator only if the permittee gives at least sixty _ (60) days advance notice to the Board and the Board approves the individual wastewater discharge permit or the general permit coverage transfer. The notice to the Board must include a written certification by the new owner or operator which:

    A. States that the new owner and/or operator has no immediate intent to change the facility's operations and processes;
    B. Identifies the specific date on which the transfer is to occur; and
    C. Acknowledges full responsibility for complying with the existing individual wastewater discharge permit or general permit.

Failure to provide advance notice of a transfer renders the individual wastewater discharge permit or coverage under the general permit void as of the date of facility transfer.

6. Nothing in this permit shall be construed to preclude the institution of any legal action,

nor relieve the permittee from any responsibilities, liabilities, or penalties established by any applicable City of Huntington Ordinances, any applicable State and Federal regulations, or any Special Agreement(s) between the Board and the permittee.

12. Violation of any of the terms or conditions of this permit, or any of the provisions of the Huntington Sewer Use Ordinance, may be cause for revocation of this permit by the Huntington Sanitary Board.

13. Any solids, sludges, spent chemicals or other pollutants generated by the permittee's pretreatment facilities shall be disposed of in accordance with Section 405 of the Clean Water Act and Subtitles C and D of the Resource Conservations and Recovery Act.

14. The permittee shall not increase the use of potable water, dilution water, process water or, in any way; attempt to dilute a discharge as a partial or complete substitute for adequate treatment to achieve compliance with the limitations contained in this permit.

15. The issuance of this permit does not convey any property rights in either real or personal property, or any exclusive privileges, nor does it authorize any invasion of personal rights or private property, or any infringement of Federal, State or Local regulations.

16. The provisions of this permit are severable, and if any provision or the application of any provision of this permit in any circumstance is held invalid, the application of such provision to other circumstances and the remainder of this permit shall not be affected thereby.

17. If the permittee desires to continue to discharge after the expiration date of this permit, the permittee must reapply for a new permit using the application forms then in use at least 180 days prior to the expiration date of this permit.

18. Any user who violates an order of Council as relates to this permit or Article 933 of the Codified Ordinances of Huntington, West Virginia, or who willfully or negligently fails to comply with any provision of this article, and the orders, rules, regulations and permits issued hereunder, shall be fined for each offense not more than twenty-five thousand dollars ($25,000.00), or imprisoned not exceeding thirty days, or both. Each day on which a violation shall occur or continue shall be deemed a separate and distinct offense. In addition to the penalties provided herein, the Board may recover reasonable attorneys' fees, court costs, court reporters' fees and other expenses of litigation by appropriate suit at law against the person found to have violated this article or the orders, rules, regulations, and permits issued hereunder.

Any user who violates any provisions of this article or who discharges or causes a discharge which produces a deposit or obstruction or otherwise causes damage to or impairs the operation of the City's POTW shall be liable to the Huntington Sanitary

Board for any expense, loss or damage caused by such violation or discharge. The Board shall bill the user for the costs incurred by it for any cleaning, repair or replacement work caused by the violation or discharge. Refusal to pay the assessed costs shall constitute a violation of this article and shall be enforceable under the provisions of this article.

Any person who knowingly makes any false statements, representation or certification in any application, record, report, plan or other document filed or required to be maintained pursuant to this article or the Industrial Waste Discharge Permit, or who falsifies, tampers with, or knowingly renders inaccurate any monitoring device or method required under this article, shall, be punished by a fine of not more than twenty-five thousand dollars ($25,000.00) per day, or by imprisonment for not more than thirty days, or both.

19. If sampling performed by an Industrial User (IU) indicates a violation, the user shall notify the Huntington Sanitary Board **within 24 hours** of becoming aware of the violation. The IU shall also repeat the sampling and analysis and submit the results of the repeat analysis to the HSB **within 30 days** after becoming aware of the violation.

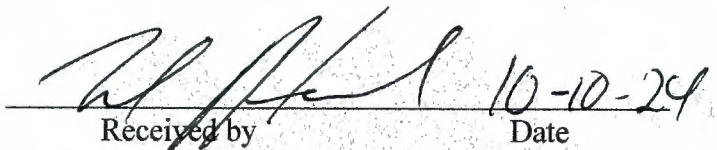
20. All reports required by this permit shall be signed by a responsible corporate officer or by a duly authorized representative of such corporate officer as defined pursuant to Title 40 CFR 403.12 (1)

21. Any reports required by this permit and any other records of monitoring activities of the permittee's discharge to the POTW, whether required by this permit or not shall be retained for a minimum of three years.

22. Under the conditions specified in Title 40 Section 403.16 of the Code of Federal Regulations, an upset shall constitute an affirmative defense to an enforcement action for noncompliance. Any industrial user seeking to establish the occurrence of an upset shall have the burden of proof to demonstrate that the conditions necessary for an upset according to the general pretreatment regulations have been met.

23. The permittee shall notify the Board in writing of any discharge to the POTW of a substance, which if otherwise disposed of, would be a hazardous waste under 40 CFR 261.

24. The permittee shall submit the results of all analysis conducted in accordance with the terms, conditions and specifications of this permit, whether specifically required by this permit or not.



Received by Date

APPENDIX A

Based on flows and sample data from November 2019 to August 2024, the maximum concentration reported for Zinc, excluding outliers, was 0.696 mg/L in August 2023 and the maximum allowable daily flow is 0.114787 mgd. Using the following formula:

mgd (million gallons per day) X ppm (mg/L) X 8.34 (pounds in one gallon of water); we derived the following maximum daily pounds to be discharged to the Board's wastewater treatment plant:

0.696 mg/L X 0.114787 mgd X 8.34#'s/gallon = 0.67 pounds/day

The Board will allocate 0.8 pounds per day to this facility.

APPENDIX B

Based on flows and sample data from November 2019 to August 2024, the maximum concentration reported for Mercury was 0.0005 mg/L in November 2020 and the maximum allowable daily flow is 0.114787 mgd. Using the following formula:

mgd (million gallons per day) X ppm (mg/L) X 8.34 (pounds in one gallon of water); we derived the following maximum daily pounds to be discharged to the Board's wastewater treatment plant:

0.0005 mg/L X 0.114787 mgd X 8.34#'s/gallon = 0.00048 pounds

The Board will allocate 0.0006 pounds per day to this facility.

Huntington Sanitary Board
Permit No. 0986002-M
Permit Fact Sheet
Veterans Administration Medical Center

General Information. **Permit 0986002-M** Domestic and Non-Domestic wastewater associated with hospital activities less than 1000 occupied beds, SIC 8062 Discharge/ Sampling Location: Existing Sanitary Manhole No. "18" in the 8-inch sewer line that runs downhill south to north in the main entrance road and is located approximately 25-30 ° northeast of the parking garage. Effluent is subject to local limits.	40 CFR 403; 261.24; 47 WVCSR; Section 933 of the Codified Ordinances of the City of Huntington;
Summary of permit conditions. Veterans Administration Medical Center is a non-categorical significant industrial user based on flows greater than 25,000 gallons per day. Their discharge flows into the Spring Valley P.S.D.'s collection system that discharges to the Board's collection system on Carson Street in Westmoreland. Local limits and RCRA restrictions apply.	40 CFR 403; 261.24; 47 WVCSR; Section 933 of the Codified Ordinances of the City of Huntington;
Permit Conditions Effluent conditions: This is not a categorical user with less than 1000 occupied beds, local limits and RCRA dictate. The Huntington Sanitary Board has specific local limits developed for the maximum allowable headwork's loading and RCRA dictates the type and amounts of hazardous wastes discharged to a POTW collection system. Zinc allocation for this facility has been raised based on actual maximum reported results.	40 CFR 403; 40 CFR Subpart C, 261.24; Section 933 of the Codified Ordinances of the City of Huntington; Appendix A of current permit.
Administrative Requirements Any Best Management Practices plans (BMPs) outlined in Section III of this permit must be current and guidance for completing these plans can be found at EPA's web site: www.EPA.gov; Guidance Manual for Developing Best Management Practices (BMPS). Contact for this permit is Carrie Denvir, 681-520-8090 or cdenvir@huntingtonsb.com	www.epa.gov/npdes/pubs/owm0274.pdf